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Social Media Gives Rise to Hate Crimes – New Legislation Requires Big Techs Transparency and Online Platforms Designed as Age Appropriate

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It's hoped that two bills together AB 2273 and AB 587 recently signed by Gov. Newsom will mark a major step forward to regulate Big Tech and address harm from social media

This article is part of a 12-part- series on hate crimes, hate speech and its relationship to stereotypes, and its impact on interethnic communities. This series examines the continued use of negative, inaccurate terms which have promoted hate and racism.

By Diana Martinez

San Fernando Valley Sun/el Sol

Emi Kim was the target of online hate and bullying growing up in school.

At a news conference, Kim stood alongside California Assemblymembers to support recent legislation that addresses the issue of "online hate."

She described the torment she experienced daily which started when she was in sixth grade.

"I'm 18 years old now, [but] I grew up with a phone in my hand. I got my first phone in sixth grade, and I downloaded Instagram shortly thereafter and found my classmates were taking pictures of me in the hallway and posting them online, and continuously calling me 'fat.' They said when I smiled, my eyes looked like macaroons and when I ate a macaroon during lunch, that I was a cannibal."

Kim is now part of the "Log Off" movement and the director of its legislative efforts. The youth organization has been created by teens for teens to promote the better and safer use of social media.

"I'm standing here to fight for what is right," Kim said. "If you would have told the 13-year-old me that I would be standing here as a leader in this movement, I would have laughed in your face. People on social media and on these platforms had convinced me that I would be nothing more than a 'fat girl.' This came with so much struggle and it's still a struggle that I come with today," she explained.

Kim announced, "I'm here to prove that not only am I a 'fat girl' but I am an intelligent woman and a powerful woman that deserves respect and my 'Asianess' isn't an excuse to push aside my accomplishments."

Kim has been a supporter of the new legislation that recently passed and is expected to require more transparency about the source of information and place more guardrails on social media.

She called on adults to "do the right thing." Ignoring the negative impact and hate-based bullying put on blast via social media can have serious consequences.

"I receive emails and messages every single day from another teenager somewhere to say that social media is the core reason they want to kill themselves. You shouldn't let children on a platform that makes them want to kill themselves. Social media wasn't designed for children, it was designed for adults," said Kim.

"Safety measures have existed on everything that kids touch except for social media," Kim pointed out. "You don't

allow your child on a bicycle without a helmet, you don't allow a baby in a kitchen without cabinet locks, you should not allow your children on social media platforms that drive them to want to kill themselves. Safety perimeters exist on everything kids touch except for social media."

Until now.

It's hoped the passage of this set of brand-new legislation will change the online climate.

"I want to tell kids that your voice and you are forever more valuable than someone else on social media. I'm standing here for you," Kim said.

In addition to young people, the most vulnerable communities that include women, people of color, religious minorities including members of the Jewish community and immigrants have been the victims of online hate.

A recent study conducted by the Anti-Defamation League (ADL) indicated a dramatic increase in Asian American harassment, which has correlated with the rise of anti-Asian hate incidents. They also found LGBTQ+ individuals experiencing harassment at the highest levels among all respondents, and nearly half of youth ages 13-17 are experiencing some type of online harassment.

Linda Ng, the national president of Asian Pacific American Advocates (a national civil rights organization), said she wasn't surprised by the results of the study conducted by the ADL because the Asian community "lives it every day."

"We are tired of the lack of regulations and the enforcement of hate on big social media platforms. Eight out of 10 Asian Americans in an 'AAPI Stop the Hate Report' reported being bullied or verbally harassed," said Ng.

The growth of verbal harassment and hate expressed against the Asian community, Ng said, "We already knew that — when Asian American Pacific Islander [AAPI] women are sent sexually harassing messages through social media sites, we're told to go back to our communities like chattel, told COVID-19 is an 'Asian disease,' and we're told that every day. Our community continues to live in fear and it's important to hold social media companies accountable. We're tired of it — we don't want words, we want action."

Two Social Media Bills are Signed by the Governor

Following a two-year battle and fierce opposition from Big Tech, Assemblymembers Jesse Gabriel, Buffy Wicks and Jordan Cunningham successfully got two bills they authored through the legislature and signed by the Governor this month: AB 587, the Social Media Accountability and Transparency Act (Gabriel), and AB 2273, the Age Appropriate Design Code (Wicks, Cunningham).

Gabriel's Assembly Bill 587 will now require more transparency and accountability from social media companies requiring their media platforms to publicly disclose and post their policies that involve disinformation, online hate, extremism and harassment.

"This new law will finally pull back the curtain and require tech companies to provide much-needed transparency and accountability to social media," said Gabriel.

"Social media has created some incredible opportunities, but also real threats and challenges — particularly when it comes to protecting our kids and our democracy," said Gabriel.

"For the first time, this bill would require major social media companies to publicly report their content moderation policies and report key data about how they enforce those policies and to be honest when they are amplifying certain voices and silencing others," said Gabriel, who maintained that there is little doubt that social media platforms have spread hate, amplified extreme and dangerous content and driven political polarization.

A 2016 internal report by Facebook found that 64 percent of people who joined an extremist group on Facebook did so only because the company's own algorithms recommended it to them, and the consequences could not be more evident.

"Consider the mass shootings we had in this country," said Gabriel. Numerous studies have linked hate violence, mass shootings and online activity, he said. "They were radicalized through a toxic brew of white supremacy and extremist ideology … social media has become rocket fuel for hate."

Gabriel also noted, in addition to the spread of hate speech, there have been the consequences of extreme political polarization online including disinformation and misinformation about COVID-19, which he said has contributed greatly to vaccine hesitancy and the refusal to vaccinate.

"It's long past time for tech companies to provide real transparency into how they are shaping our public discourse. The public and policymakers deserve to know when social media companies are amplifying certain voices and silencing others."

Gabriel called the legislation an important step in a broader effort to "protect our vulnerable communities and hold Big Tech accountable."

Children's Data Protection

Wick's and Cunningham's Assembly Bill 2273 prohibits companies that provide online services, products or features likely to be accessed by children from using a child's personal information; collecting, selling or retaining a child's geolocation; profiling a child by default; and leading or encouraging children to provide personal information.

She said safeguards are already in place in the United Kingdom where they have already passed the design code.

"[In the UK,] YouTube has turned off autoplay for children under 18 and Google has made safe search its default browsing mode for those under the age of 18, TikTok and Instagram has disabled direct messaging between children and adults they don't follow, TikTok doesn't put forth notifications past a certain hour. A lot of these things may sound like small things but they are big things to the ecosystems that our children are living in," said Wick.

"Children have been bombarded with inappropriate information online and they don't yet have the capacity to understand all the information coming at them, so we want to make sure that when these products are created, they are by design and default safe for our children."

"I'm very glad for our kids that the governor signed AB 2273, requiring that online platforms accessible by children be designed as age-appropriate," echoed Assemblymember Jordan Cunningham, who pointed out that "there are predators out there and they use these tools to try to get at children and it's not right."

"With this law, California is leading the nation in creating a new online experience that is safe for kids. We still have more work to do to address the youth mental health crisis," he acknowledged.

"In particular, we know that certain Big Tech social media companies design their products to addict kids, and a significant number of those kids suffer serious harm as a result … such as depression, suicidal thoughts, anxiety and eating disorders. Protecting kids online is not only common sense, but it will also save lives."

The Children's Data Protection Working Group will be established as part of the California Age-Appropriate Design Code Act to deliver a report to the legislature by January 2024 on the best practices for implementation.

The legislators delivered a unified message: "Children and communities deserve to be safe. California is home to the digital world and with this bipartisan legislation, it's our hope California will lead the way."

"As California goes, so goes the nation," said Wick.

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